

June 15, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14303

EXPIRATION DATE: May 31, 2008

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Constellation Energy
Lusby, MD
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-time, one-way, transportation in commerce of two Reactor Vessel Closure Head (RVCH) packages, containing Class 7 radioactive material, to be classified as surface contaminated objects (SCO-II), and transported as non-specification packages from the Calvert Cliffs Nuclear Power Plant in Lusby, MD to the Radiological Assistance, Consulting, and Engineering facility in Memphis, TN. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED:
 - a. 49 CFR § 173.403 insofar as the RVCH packages and their contents containing surface contaminated object type radioactive material may be considered SCO-II as specified herein.

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- b. 49 CFR § 173.427(b)(1) in that the material authorized in paragraph 6 (SCO-II) may be transported in non-specification packagings only as specified herein.
- c. 49 CFR § 173.465(c) and (d) insofar as modified mechanical testing is authorized.
5. BASIS: This special permit is based on the application of Constellation Energy dated December 15, 2005 and the technical information dated May 3, 2006 submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Radioactive material, surface contaminated objects (SCO-II) <i>non fissile or fissile excepted</i>	Class 7	UN2913	N/A

7. SAFETY CONTROL MEASURES:
- a. PACKAGING - The RVCH packages and contents must be as described in the Constellation Energy documentation on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA).
- b. OPERATIONAL CONTROLS -
- (1) Transportation is limited to the United States and its inland waterways and coastline waters.
- (2) The total activity of each RVCH package may not exceed 1.5A₂. The A₂ value is to be calculated in accordance with § 173.433.
- (3) Package preparation and transportation must be conducted in accordance with the Constellation Energy documentation on file with the OHMSPA.

(4) The RVCH packages must be consigned as exclusive use under the provisions of 49 CFR § 173.427(a)(6)(ii)-(v) including placarding.

c. COMMUNICATIONS -

(1) The outside of the RVCH packages must be plainly and durably marked "DOT-SP 14303". Letters and numerals must be at least 0.25 inches wide and 4.0 inches high.

(2) The outside of the RVCH packages must be marked and labeled according to the applicable provisions of the HMR for bulk packaging.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle or cargo vessel used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

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- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: WILLIAMSJ:dl